



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1627: schools; prohibition; unmanned aircraft

REIM FLOOR AMENDMENT

1. Makes it unlawful to operate or use an unmanned aircraft or unmanned aircraft system *200 feet or less above a property*, rather than *within 100 feet of or above an area*.
2. Stipulates that it is unlawful to recreationally operate an unmanned aircraft or aircraft system above a property if the operator is knowledgeable of the facility's specified characteristics and reasonable notice to leave the property was given.
3. Specifies the operation of an unmanned aircraft or aircraft system over a property providing instruction to students is prohibited when school is in session or when school activities are occurring on the property outside of normal school hours.
4. Adds that it is unlawful to operate an unmanned aircraft or aircraft system above certain properties if:
 - a. the property owner or a person who has lawful control over the property posts reasonable notice prohibiting entry on or over the property; and
 - b. a peace officer, property owner or a person with lawful control over the property notifies the unmanned aircraft operator of the prohibition and gives a reasonable request to leave the property.
5. Restates the prohibition on recreationally operating unmanned aircraft above certain properties does not apply to a person who has legal authority or administrative oversight over the property.
6. Changes the violation of the prohibition on recreationally operating unmanned aircraft above certain properties from a class 1 to a class 3 misdemeanor.
7. Makes clarifying changes.

REIM FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1627
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3729, Arizona Revised Statutes, is amended to
3 read:

4 13-3729. Unlawful operation of model or unmanned aircraft:
5 classification; definitions

6 A. It is unlawful for a person to operate a model aircraft or a
7 civil unmanned aircraft if the operation:

8 1. Is prohibited by a federal law or regulation that governs
9 aeronautics, including federal aviation administration regulations.

10 2. Interferes with a law enforcement, firefighter or emergency
11 services operation.

12 B. It is unlawful for a person to operate or use an unmanned
13 aircraft or unmanned aircraft system to intentionally photograph or loiter
14 over or near a critical facility in the furtherance of any criminal
15 offense.

16 C. IT IS UNLAWFUL FOR A PERSON TO OPERATE OR USE AN UNMANNED
17 AIRCRAFT OR UNMANNED AIRCRAFT SYSTEM TO INTENTIONALLY PHOTOGRAPH OR LOITER
18 ~~[OVER AN AREA THAT IS WITHIN ONE HUNDRED FEET OF OR WITHIN ONE HUNDRED~~
19 ~~FEET ABOVE AN AREA THAT]~~ [TWO HUNDRED FEET OR LESS ABOVE A PROPERTY IF THE
20 OPERATOR IS OPERATING THE UNMANNED AIRCRAFT OR UNMANNED AIRCRAFT SYSTEM
21 FOR HOBBY OR RECREATIONAL PURPOSES AND KNOWS OR REASONABLY SHOULD KNOW
22 THAT ALL OF THE FOLLOWING APPLY:

23 1. THE PROPERTY] IS NOT ZONED FOR RESIDENTIAL USE[.] ~~[AND THAT]~~

24 [2. THE PROPERTY] IS USED TO PROVIDE INSTRUCTION TO STUDENTS IN
25 KINDERGARTEN PROGRAMS OR [STUDENTS] IN [ANY OF] GRADES ONE THROUGH TWELVE
26 ~~[UNLESS THE PERSON HAS LEGAL AUTHORITY OR ADMINISTRATIVE OVERSIGHT OVER~~
27 ~~THE AREA OR OBTAINS CONSENT FROM ANOTHER PERSON WITH LEGAL AUTHORITY OR~~
28 ~~ADMINISTRATIVE OVERSIGHT OVER THE AREA]~~ [WHEN SCHOOL IS IN SESSION OR WHEN

1 SCHOOL ACTIVITIES ARE OCCURRING ON THE PROPERTY OUTSIDE OF NORMAL SCHOOL
2 HOURS].

3 [3. THE PROPERTY OWNER OR A PERSON WHO HAS LAWFUL CONTROL OVER THE
4 PROPERTY HAS POSTED REASONABLE NOTICE PROHIBITING ENTRY ON OR OVER THE
5 PROPERTY.]

6 4. A PEACE OFFICER, THE OWNER OF THE PROPERTY OR A PERSON WHO HAS
7 LAWFUL CONTROL OVER THE PROPERTY HAS NOTIFIED THE OPERATOR OF THE UNMANNED
8 AIRCRAFT OR UNMANNED AIRCRAFT SYSTEM OF THE PROHIBITION AND GIVEN A
9 REASONABLE REQUEST TO LEAVE THE PROPERTY.]

10 ~~C.~~ D. Except as authorized by law, a city, town or county may not
11 enact or adopt any ordinance, policy or rule that relates to the ownership
12 or operation of an unmanned aircraft or unmanned aircraft system or
13 otherwise engage in the regulation of the ownership or operation of an
14 unmanned aircraft or an unmanned aircraft system. Any ordinance, policy
15 or rule that violates this subsection, whether enacted or adopted by the
16 city, town or county before or after August 6, 2016, is void.

17 ~~D.~~ E. This section does not:

18 1. Apply to a person or entity that is authorized or allowed by the
19 federal aviation administration to operate or use an unmanned aircraft
20 system if the person's or entity's operation or use complies with the
21 authorization granted to the person or entity or with federal aviation
22 administration rules.

23 2. Prohibit a city, town or county from enacting or adopting
24 ordinances or rules on the operation or use of a public unmanned aircraft
25 that is owned by the city, town or county.

26 3. Prohibit a city, town or county from enacting or adopting
27 ordinances or rules that regulate the takeoff or landing of a model
28 aircraft in a park or preserve owned by the city, town or county if:

29 (a) There are other parks or preserves that are within the city,
30 town or county and that are available for model aircraft operation.

31 (b) The city, town or county only has one park or preserve that is
32 within the city, town or county.

33 4. Apply to the operation of an unmanned aircraft, including a
34 public unmanned aircraft, by a first responder as defined in section
35 36-661 while acting in the first responder's official capacity or an
36 emergency worker while engaged in or supporting authorized emergency
37 management activities or performing emergency functions pursuant to title
38 26, chapter 2.

39 [F. SUBSECTION C OF THIS SECTION DOES NOT APPLY TO A PERSON WHO HAS
40 LEGAL AUTHORITY OR ADMINISTRATIVE OVERSIGHT OVER THE PROPERTY OR WHO
41 OBTAINS CONSENT FROM ANOTHER PERSON WITH LEGAL AUTHORITY OR ADMINISTRATIVE
42 OVERSIGHT OVER THE PROPERTY.]

43 ~~F.~~ [G.] A violation of subsection B of this section is a
44 class 6 felony, except that a second or subsequent violation is a class 5
45 felony. A violation of subsection A ~~[OR C]~~ of this section is a class 1

1 misdemeanor. [A VIOLATION OF SUBSECTION C OF THIS SECTION IS A CLASS 3
2 MISDEMEANOR.]

3 ~~F.~~ ~~[G.]~~ [H.] For the purposes of this section:

4 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
5 aircraft system that is operated by a person for any purpose other than
6 strictly for hobby or recreational purposes, including commercial
7 purposes, or in furtherance of or incidental to any business or media
8 service or agency.

9 2. "Commercial purposes" means the use of an unmanned aircraft in
10 return for financial compensation and includes aerial photography, aerial
11 mapping or geospatial imaging.

12 3. "Critical facility" means any of the following:

13 (a) A petroleum or alumina refinery.

14 (b) A petroleum, chemical or rubber production, transportation,
15 storage or processing facility.

16 (c) A chemical manufacturing facility.

17 (d) A water or wastewater treatment facility and water development,
18 distribution or conveyance system, including a dam.

19 (e) An electric generation facility, as defined in section
20 42-14156, and any associated substation or switchyard.

21 (f) An electrical transmission or distribution substation.

22 (g) An electrical transmission line of at least sixty-nine thousand
23 volts.

24 (h) An electronic communication station or tower.

25 (i) An energy control center.

26 (j) A distribution operating center.

27 (k) A facility that transfers or distributes natural gas, including
28 a compressor station, regulator station, city gate station or pressure
29 limiting station or a liquefied natural gas facility or supplier tap
30 facility.

31 (l) Any railroad infrastructure or facility.

32 (m) A federal, state, county or municipal court.

33 (n) A public safety or emergency operation facility.

34 (o) A federal, state, county or municipal jail or prison or other
35 facility in which persons are incarcerated.

36 (p) A federal or state military installation or facility.

37 (q) A hospital that receives air ambulance services.

38 4. "Model aircraft" ~~has the same meaning prescribed in section 336~~
39 ~~of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended~~

40 MEANS AN UNMANNED AIRCRAFT THAT IS [ALL OF THE FOLLOWING]:

41 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

42 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
43 THE MODEL AIRCRAFT.

44 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

House Amendments to S.B. 1627

1 5. "Person" means a corporation, firm, partnership, association,
2 individual or organization or any other group acting as a unit.

3 6. "Public unmanned aircraft" means an unmanned aircraft or
4 unmanned aircraft system that is operated by a public agency for a
5 government-related purpose.

6 7. "Unmanned aircraft" means an aircraft, including an aircraft
7 commonly known as a drone, that is operated without the possibility of
8 direct human intervention from within or on the aircraft.

9 8. "Unmanned aircraft system" means an unmanned aircraft and
10 associated elements, including any communication links and components that
11 control the unmanned aircraft.

12 Enroll and engross to conform

13 Amend title to conform

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